

STATE OF NEW YORK

7052--A

2025-2026 Regular Sessions

IN SENATE

March 31, 2025

Introduced by Sens. WEBB, FERNANDEZ -- read twice and ordered printed, and when printed to be committed to the Committee on Health -- reported favorably from said committee and committed to the Committee on Finance -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public health law, in relation to rates of payment for certified home health agencies

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivision 13 of section 3614 of the public health law is
2 amended by adding a new paragraph (d) to read as follows:

3 (d) Notwithstanding any inconsistent law or regulation, by October
4 first, two thousand twenty-five and annually thereafter, the commis-
5 sioner shall make the system of episodic payments, including all pricing
6 mechanisms, available to all Medicaid managed care plans licensed to
7 operate in New York state, all child health insurance plans licensed to
8 operate under section twenty-five hundred eleven of this chapter, and
9 all Essential Plans authorized by section three hundred sixty-nine-gg of
10 the social services law. By October first, two thousand twenty-five and
11 annually thereafter, the commissioner shall notify all such managed care
12 plans of their responsibilities for ensuring that their enrolled members
13 have access to certified home health agency services; that such services
14 are critical to improving patient care and reducing overall costs,
15 particularly costs related to avoidable hospital use; and that episodic
16 payments as described in paragraph (a) of this subdivision are consid-
17 ered the standard method of certified home health agency payment by New
18 York state government agencies. Nothing in this paragraph shall preclude
19 a managed care plan and certified home health agency from agreeing upon
20 an alternative rate methodology and payment rate, including value-based
21 payments related to health outcome measurements.

22 § 2. This act shall take effect immediately.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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